

STATE OF NEW YORK

4678--A

2025-2026 Regular Sessions

IN ASSEMBLY

February 4, 2025

Introduced by M. of A. LAVINE -- read once and referred to the Committee on Codes -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the penal law, in relation to prohibiting recording of the entrance of a school ground

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Section 240.26 of the penal law, as amended by chapter 109 of the laws of 1994, is amended to read as follows:

§ 240.26 Harassment in the second degree.

A person is guilty of harassment in the second degree when, with intent to harass, annoy or alarm another person:

1. ~~[He or she]~~ The actor strikes, shoves, kicks or otherwise subjects such other person to physical contact, or attempts or threatens to do the same; or

2. ~~[He or she]~~ The actor follows a person in or about a public place or places; or

3. ~~[He or she]~~ The actor engages in a course of conduct or repeatedly commits acts which alarm or seriously annoy such other person and which serve no legitimate purpose~~[-]~~; or

4. The actor either (a) broadcasts or records the entrance or exit to school grounds or the entrance or exit to a property that contains school grounds within its boundaries; or (b) uses or installs, or permits the utilization or installation of a mechanical, digital or electronic viewing device, camera, cellular phone or any other instrument capable of recording, storing or transmitting visual images to view, broadcast or record an entrance or exit to a school ground or an entry or exit to a property that contains school grounds within its boundaries.

Subdivisions two and three of this section shall not apply to activities regulated by the national labor relations act, as amended, the

EXPLANATION--Matter in italics (underscored) is new; matter in brackets ~~[-]~~ is old law to be omitted.

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1 railway labor act, as amended, or the federal employment labor manage-
2 ment act, as amended.
3 Harassment in the second degree is a violation.
4 § 2. This act shall take effect on the first of November next succeed-
5 ing the date on which it shall have become a law.